

DRAFT — COUNSEL REVIEW REQUIRED

Commercial Package

Order Form · Data Processing Addendum · Subprocessor List

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GAPS FILLED IN THIS VERSION

Contracting entity: Apps on Demand LLC d/b/a Rapid Cortex
Primary region: us-east-1 · Data deletion window: 30 days · Incident notification: 72 hours
International transfers: EU SCC 2021/914 (or equivalent) — counsel to attach exhibit

INTERNAL — CONFIDENTIAL · NOT EXECUTABLE WITHOUT COUNSEL SIGN-OFF

Generated: July 09, 2026 · Apps on Demand LLC d/b/a Rapid Cortex

Part 1

Order Form

Service tier · modules · fees · compliance acknowledgments

Order Form

■ **DRAFT — COUNSEL AND FINANCE REVIEW REQUIRED.** Attach to and governed by the Master Services Agreement or Platform Services Agreement. Exhibit A (Statement of Work) may be attached or incorporated by reference. Do not execute until counsel approves entity naming (LEG-007) and Finance completes Section 3 fees.

Order Details

Field	Value
Order Form ID	RC-OF-[YYYY]-[NNNN]
Customer legal name	[AGENCY LEGAL NAME]
Contracting entity	✓ FILLED: Apps on Demand LLC d/b/a Rapid Cortex
Effective date	[DATE]
MSA effective date	[DATE] (or "MSA executed concurrently")
Initial term	12 months from Service Commencement Date
Auto-renewal	[Yes / No] per MSA Article 3

1. Service Tier and Modules

Item	Selection
Plan	☐ Essential ☐ Professional ☐ Command ☐ Enterprise ☐ Pilot (see Pilot Scope Agreement)
Agency type	☐ PSAP / ECC ☐ Campus ☐ Venue ☐ Hospital ☐ Other: _____
Jurisdiction slug(s)	[e.g. erie-county]
Cognito agency ID	[agencyId UUID or slug]

Modules in scope — check all that apply. Align with SALES_SCOPE_MATRIX.md. Do not check modules not sold.

Module	In Scope	Notes
Real-time transcription	☐	
AI incident analysis (assistive)	☐	Human-in-the-loop required — see Section 6
Multilingual STT / translation	☐	Requires provider config per implementation workbook
Supervisor QA / review queues	☐	
Non-emergency / triage queue (F3)	☐	If enabled in SOW
CAD read-only adapter	☐	Vendor: _____
CAD assisted write-back	☐	Separate legal addendum required — do not check without executed addendum

Module	In Scope	Notes
Media / caller link intake	☐	
Ring Connect	☐	
Desktop apps (macOS / Windows)	☐	
RC Lite API	☐	Use RC Lite Agreement instead if API-only

2. Users and Sites

Metric	Quantity
Licensed seats (concurrent)	☐ [N]
Sites / jurisdictions	☐ [N]
Dedicated SMS number (campus/venue)	☐ Yes — [number] ☐ N/A (PSAP)

3. Fees

Finance to complete — not for publication

■ Public marketing remains quote-based. Do not publish this section or attach unsigned versions to public-facing materials.
Finance to complete all [TBD] amounts from RC_Pricing_Master_Guide_v4.xlsx.

Line Item	Amount (USD)	Frequency
Platform subscription	\$(TBD)	Monthly / Annual
One-time implementation	\$(TBD)	Once
Training (onsite days)	\$(TBD)	Per SOW
CAD integration (if any)	\$(TBD)	Per vendor SOW
Total year-one estimate	\$(TBD)	

Payment terms: Net 30

PO required: ☐ Yes ☐ No PO #: _____

Tax: ☐ Tax-exempt — certificate on file ☐ Standard sales tax applies

4. Service Commencement

Milestone	Target Date
Tenant provisioned	[date]
Admin training complete	[date]
Go-live (floor use)	[date]

Service Commencement Date: Earlier of go-live or [DATE + 90 days] if agency delays are not Processor-caused.

5. Support Level

- ☐ Standard business hours (included in all plans)
- ☐ Priority / Mission-Critical (if contracted — see pricing guide)

Escalation contacts per OPS_CONTACT_MATRIX.md — fill agency rows in playbook before go-live.

6. Data and Compliance Acknowledgments

Item	Acknowledgment
DPA executed	☐ Concurrent DPA ☐ DPA dated _____
Privacy / retention decisions reviewed	☐ Per PRIVACY_RETENTION_DECISIONS.md and Section 7 of DPA
CJIS / security review	☐ Complete ☐ In progress — PLT-002 tracking required
Assistive AI / not autonomous dispatch acknowledged	☐ Acknowledged — PILOT_GOVERNANCE.md and DPA §2.3
CAD write-back (if in scope)	☐ Separate legal addendum signed ☐ N/A — CAD write-back not in scope

7. Special Terms

[Free text — e.g. pilot extension clause, CAD vendor name, data residency requirement, excluded modules, grant funding reference, performance bond waiver, etc.]

8. Order of Precedence

1. This Order Form (including Exhibit A SOW if attached)
2. Master Services Agreement
3. Data Processing Addendum
4. Documentation and marketing materials (non-binding for scope)

Signatures

CUSTOMER	RAPID CORTEX
Apps on Demand LLC d/b/a Rapid Cortex	Apps on Demand LLC d/b/a Rapid Cortex
Authorized signature:	Authorized signature:
_____	_____
Print name:	Print name:
_____	_____
Title:	Title:
_____	_____
Date:	Date:

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Execution of this Order Form by both parties constitutes acceptance of the terms of the Master Services Agreement, Data Processing Addendum, and all exhibits attached hereto.

Part 2

Data Processing Addendum

Controller / Processor obligations · security · incidents · audits

Data Processing Addendum

■ **DRAFT — COUNSEL REVIEW REQUIRED.** Not executable. Do not send to customers until legal approves and entity naming is finalized (DOCUMENT_GAPS.md LEG-007). Governs processing of personal data and operational content when Rapid Cortex is provided as a hosted service.

■ **Gaps filled in this version:** Contracting entity → **Apps on Demand LLC d/b/a Rapid Cortex**. Primary region → **us-east-1**. Deletion window → **30 days**. Incident notification target → **72 hours**. International transfers → **EU Standard Contractual Clauses (2021/914)** — counsel to attach exhibit.

Parties

Party	Role	Description
[AGENCY LEGAL NAME] ("Customer" or "Controller")	Controller	Determines purposes and means of processing agency operational data
Apps on Demand LLC d/b/a Rapid Cortex ("Rapid Cortex" or "Processor")	Processor	Processes data on Customer's instructions per this DPA and the Master Services Agreement ("MSA")

Effective date: [DATE]

Incorporation: This DPA is incorporated into and forms part of the MSA, pilot scope agreement, or order form between the Parties.

1. Definitions

"Personal Data" — Information relating to an identified or identifiable natural person processed through the Service (e.g. caller phone numbers, names in transcripts, user account identifiers).

"Operational Data" — Incident metadata, transcripts, AI analyses, audit logs, and media linked to incidents, whether or not they contain Personal Data.

"Service" — Rapid Cortex cloud platform and related support as described in the applicable Statement of Work.

"Subprocessor" — Third party engaged by Processor to process data — see Exhibit A (Subprocessor List).

"Security Incident" — Confirmed unauthorized access to, or disclosure, alteration, loss, or destruction of, Customer Personal Data or Operational Data.

Capitalized terms not defined here have meanings in the MSA.

2. Roles and Scope

2.1 Customer is the **Controller** (or equivalent) for agency operational and personal data submitted to the Service, except where Customer acts as Processor for its own end users and Rapid Cortex processes only on Customer instructions.

2.2 Processor processes Personal Data and Operational Data **only** to: (a) provide the Service per the MSA and Statement of Work; (b) provide support and security monitoring; (c) comply with applicable law; and (d) as otherwise documented in writing by Customer.

2.3 Processor **does not** use Customer content to train public foundation models for unrelated products or disclose it to third parties except as listed in Exhibit A or required by law.

3. Customer Instructions

- 3.1** Customer instructions are the MSA, Statement of Work, this DPA, and documented configuration (tenant settings, retention parameters, enabled modules checked in the Order Form).
- 3.2** Processor will notify Customer promptly if a specific instruction appears to violate applicable data protection law; Processor is not required to follow such instruction until Customer provides a lawful alternative.

4. Security Measures

- 4.1** Processor implements technical and organizational measures appropriate to the risk of processing, including those described in SECURITY_MODEL.md and TENANT_ISOLATION_MODEL.md.
- 4.2** Measures include, at minimum: tenant isolation by **agencyId**, TLS 1.2+ encryption in transit, encryption at rest (AWS-managed keys or KMS CMK per deployment), access controls via Cognito JWT and RBAC, secrets in AWS Secrets Manager, structured audit logging to DynamoDB, and CloudTrail where enabled.
- 4.3** Processor will maintain measures **at least as protective** as those described and will notify Customer of material reductions.
- 4.4** Processor does **not** represent CJIS, HIPAA, SOC 2 Type II, or FedRAMP certification unless a separate executed attestation exists. CJIS alignment documentation is available; agency remains responsible for its own CJIS program obligations.

5. Subprocessors

- 5.1** Customer authorizes Processor to engage Subprocessors listed in **Exhibit A** (Subprocessor List) as updated from time to time.
- 5.2** Processor will provide **30 days' advance written notice** of material Subprocessor additions or replacements — notice sent to Customer security contact on file.
- 5.3** Customer may object to a Subprocessor change on reasonable data protection grounds within **14 days** of notice. Parties will work in good faith to resolve. If unresolved, Customer may terminate the affected module(s) per MSA termination provisions without early termination fees for the terminated modules.
- 5.4** Processor imposes data protection obligations on Subprocessors substantially equivalent to this DPA and remains liable to Customer for Subprocessor acts and omissions to the same extent as if Processor had performed the processing directly.

6. Data Location

- 6.1 Primary region: us-east-1** (AWS US East — N. Virginia) unless the Statement of Work specifies an alternative.
- 6.2 CJIS-sensitive deployments:** Customer may require AWS-only AI and speech providers with all external provider keys (OpenAI, Anthropic, Azure, Google) disabled — documented in implementation workbook and enforceable via tenant configuration. See CJIS_ALIGNMENT_NOTES.md.
- 6.3** Processor will notify Customer of any proposed change to primary processing region with at least 90 days' written notice.

7. Retention and Deletion

- 7.1** Default retention periods and agency configuration responsibilities are described in PRIVACY_RETENTION_DECISIONS.md and may be adjusted per agency configuration (TRANSCRIPT_RETENTION_POLICY_DAYS and related parameters).
- 7.2** Upon termination of the MSA or written Customer request, Processor will **delete or return** Customer Personal Data and Operational Data within **30 days**, except: (a) backup copies on automated rolling cycles which are deleted per the applicable

backup retention policy; (b) data that Processor is required by applicable law to retain; and (c) anonymized aggregates that cannot identify Customer or any individual.

7.3 Customer must notify Processor in writing to impose a **legal hold** suspending deletion obligations. Processor will acknowledge within 2 business days.

7.4 Processor will provide written confirmation of deletion completion within 10 business days of completing deletion.

8. Assistance to Customer

Processor will reasonably assist Customer with:

- Security questionnaires, consistent with SECURITY_QUESTIONNAIRE_RESPONSES.md;
- Data subject or individual rights requests, to the extent Processor can verify identity and scope through Customer admin tools;
- Data protection impact assessments where required and within Processor's reasonable knowledge; and
- Security incident notification per Section 9.

Non-standard assistance beyond the above (e.g. custom exports, complex inquiry responses) may be subject to professional services fees at MSA rates.

9. Security Incidents

9.1 Processor will notify Customer **without undue delay** — targeting **72 hours** after confirming a Security Incident affecting Customer Personal Data or Operational Data. Initial notification may be made before full information is available; Processor will supplement as more information becomes known.

9.2 Notification will include, to the extent known: nature of the incident, categories and approximate volume of records affected, likely consequences, measures taken or proposed by Processor to address the incident, and a contact point for further information.

9.3 Processor will cooperate with Customer's investigation, subject to confidentiality obligations and applicable law enforcement constraints. Notification under this section does not constitute admission of liability or fault.

9.4 Processor maintains an incident response plan per INCIDENT_RESPONSE.md.

10. International Transfers

10.1 If processing involves transfers of Personal Data outside the Customer's jurisdiction or the European Economic Area, the Parties will execute appropriate transfer mechanisms as required by applicable law. The default mechanism is the **European Commission Standard Contractual Clauses (Decision 2021/914)**, Controller-to-Processor modules — **counsel to prepare and attach as an exhibit to this DPA prior to execution.**

10.2 Where Customer is a U.S. government agency or PSAP operating under U.S. law, the parties acknowledge that processing described herein is performed within U.S. AWS infrastructure (us-east-1 by default) and agree that cross-border transfer mechanisms are not required absent Customer-specific requirements.

11. Audits and Inspections

11.1 Customer may audit Processor's compliance with this DPA **once per 12-month period**, on **30 days' written notice**, during normal business hours, without disrupting Processor's services to other customers.

11.2 Processor may satisfy audit obligations with **third-party audit reports** (e.g. SOC 2 Type II, penetration test report) when available and reasonably current. Customer may conduct additional inspection only where third-party reports do not reasonably address the subject of inquiry.

11.3 Customer bears its own costs and expenses in connection with audits. Processor may charge for reasonable time spent supporting on-site audits beyond documentation review at MSA professional services rates.

12. Liability

12.1 Liability caps, exclusions, and indemnification obligations arising from or related to this DPA are governed by the **MSA**, unless applicable data protection law imposes mandatory liability provisions for data protection breaches that cannot be limited by contract, in which case such mandatory provisions apply to the extent required by law.

13. Term

13.1 This DPA remains in effect for the duration of the MSA and until all Customer Personal Data and Operational Data is deleted or returned per Section 7. Sections 4, 7, 9, 11, and 12 survive termination.

Signatures

CUSTOMER	RAPID CORTEX
Apps on Demand LLC d/b/a Rapid Cortex	Apps on Demand LLC d/b/a Rapid Cortex
Authorized signature:	Authorized signature:
Print name:	Print name:
Title:	Title:
Date:	Date:

By signing below, each party agrees to the terms of this Data Processing Addendum. This DPA is effective as of the date last signed below.

Exhibit A

Subprocessor List

All third parties that may process Customer data (incorporated into DPA §5)

Exhibit A — Subprocessor List

■ **DRAFT** — Review quarterly and before each major architecture change. Not exhaustive of every AWS API call; lists categories of third parties that may process customer data when features are enabled. Incorporated by reference into the DPA (Section 5).

Rapid Cortex is primarily deployed on **Amazon Web Services (us-east-1** by default unless the Statement of Work specifies otherwise). Customer data is scoped by **agencyId** tenant isolation.

1. Infrastructure (Always Active for Hosted SaaS)

Subprocessor	Purpose	Data Categories	Region / Notes
Amazon Web Services	Hosting: Lambda, API Gateway, DynamoDB, S3, Cognito, CloudWatch, Secrets Manager, SES, SNS, EventBridge, ECS/Fargate, CloudFront, Route 53, ACM, WAF (when enabled)	Account metadata, incident data, transcripts, audit logs, auth tokens (server-side), media objects	Customer stack region (default: us-east-1) — see SECURITY_MODEL.md

2. AI and Language (When Enabled — Default on Most Stacks)

Subprocessor	Purpose	Data Categories	Region
Amazon Bedrock	Incident analysis, triage, summarization	Transcript excerpts, incident metadata	AWS region of Bedrock endpoint
Amazon Transcribe	Speech-to-text	Audio / stream metadata	AWS
Amazon Translate	Text translation	Transcript text	AWS
Amazon Comprehend	Language detection / NLP	Transcript text	AWS

Optional providers (only when external secret ARNs are configured — **disabled by default in CJIS-sensitive posture**):

Subprocessor	Purpose	Data Categories
OpenAI	Alternate analysis provider	Prompts / transcripts per handler config
Anthropic	Alternate analysis provider	Prompts / transcripts per handler config
Microsoft Azure (Speech / Translator)	Alternate STT / translation	Audio / text per env
Google Cloud	Alternate STT / translation	Audio / text per service account

Disable optional providers by leaving external secret ARNs unset in deployment configuration. See [DEPLOYMENT_MULTILINGUAL_AWS.md](#) and [CJIS_ALIGNMENT_NOTES.md](#).

3. Communications and Integrations (Feature-Gated)

Subprocessor	Purpose	Data Categories	When Active
Amazon SES	Transactional email (invites, billing, notifications)	Email addresses, message content	When email features enabled
Amazon SNS	Ops alerts, optional SMS	Phone/email for alerts	Operator-configured
Amazon Pinpoint	SMS / messaging links (caller media intake)	Phone numbers, message metadata	When Pinpoint features enabled
Twilio (or adapter)	Telephony / SMS integrations	Call/SMS metadata	Only if integration deployed and configured
Ring (partner API)	Camera / doorbell integrations	Device metadata, media	Ring Connect module only
CAD vendor systems	Read or write adapters per agency	Incident/unit data per agency	Agency-controlled endpoints

4. Payments (Billing Module)

Subprocessor	Purpose	Data Categories
Payment processor (per agency contract)	Invoicing / card processing	Billing contact, payment metadata

Payment processor varies by agency contract; not all deployments enable billing Lambdas.

5. Desktop Distribution

Subprocessor	Purpose	Data Categories
Amazon S3 + CloudFront	Presigned desktop installer URLs	Download audit metadata
Apple / Microsoft (platform)	OS notarization / SmartScreen validation	Installer binaries (no customer content)

6. Customer Responsibilities

Agencies remain solely responsible for the following — Processor has no control over these systems:

- Identity provider policies (MFA enforcement, account lifecycle, personnel departures)
- CAD, radio, CPE, and logging systems of record
- Workstation and network security at agency sites
- Personnel screening per CJIS or applicable state policy
- Executed DPAs with any agency-chosen third-party integrators
- Public records and law enforcement data retention obligations

7. Version History

Version	Date	Change
0.1	2026-07-09	Initial draft from infra/template.yaml and provider docs
0.2	July 09, 2026	Integrated into Commercial Package PDF; gaps filled per DPA §5

Contact: Security review requests — use agency contract channel or privacy@rapidcortex.us for privacy-specific questions. Subprocessor changes communicated per DPA Section 5.2 (30 days' notice).